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U.S. Department of State Diplomacy in Action

Haiti

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Haiti was in a constitutionally irregular situation throughout the year. Prime Minister Jacques Edouard Alexis, appointed in December 1998, completed only the first stage of the required two-part ratification process. The terms of office of the entire 85-seat House of Deputies and all but 9 of the 27 members of the Senate expired on January 11. Before Alexis could submit his Cabinet and plan of government to Parliament for approval as required by the 1987 Constitution, President Rene Preval announced that he would not recognize Parliament's decision to extend its incumbents' mandates until new elections could be held. This effectively dissolved the Parliament on January 11, leaving the country without a functioning legislative branch of government or any duly elected officials apart from President Preval and eight remaining senators. In March, after negotiations with a five-party opposition coalition, Prime Minister Alexis formed a cabinet. However, due to the absence of a parliament, the new ministers took office without being confirmed. At year's end, there were plans to hold a first round of parliamentary elections in March 2000, a second round in April, and presidential elections in December. The judiciary is theoretically independent; however, in practice it remained largely weak and corrupt.

In September 1994, a U.N.-sanctioned multinational force restored the country's democratically elected president. The Armed Forces of Haiti (FAd'H) were subsequently disbanded. At that time, the Government established the Haitian National Police (HNP), which continues to gain experience and to benefit from international training and advisors, although it has severe attrition problems. Moreover, it remains an immature force that is still grappling with problems of corruption and human rights abusers within its ranks. Allegations of corruption, incompetence, and narcotics trafficking target members at all levels of the force. The HNP has a variety of specialized units, including a crisis response unit, a crowd control unit (CIMO) serving Port-au-Prince and the Western department, crowd control units (UDMO's) serving each of the remaining eight departments, a presidential and palace security unit, an 81-officer Coast Guard unit, and a Special Investigative Unit (SIU). The SIU was formed to investigate high-profile political killings but is ill-equipped, inexperienced, and has made limited progress on its cases. Some members of local government councils (CASEC's) exercise arrest authority without legal sanction. Members of the HNP and other security forces committed some serious human rights abuses.

The mandate of the U.N. Police Mission in Haiti (MIPONUH), which advised and trained the HNP, is currently set to expire on March 15, 2000. The United Nations plans to replace that mission with a civilian follow-on technical assistance program.

Haiti is an extremely poor country, with a per capita annual income of around \$400. This figure probably does not fully include significant transfers from the over 1 million Haitians living abroad, as well as income from informal sector activities that constitute an estimated 70 percent of actual economic activity. The country has a market-based economy with state

enterprises controlling telecommunications and utilities. The Government had proposed a broad plan for privatization of state-owned enterprises. However, aside from the sale of two previously closed enterprises, the process has come to a halt. A small elite controls much of the country's wealth. Accurate employment statistics are unavailable. About two-thirds of the population work in subsistence agriculture, earn less than the average income, and live in extreme poverty. A small part of the urban labor force works in the industrial and assembly sectors, with an equal number in government or service sector employment. Assembled goods, textiles, leather goods, handicrafts, and electronics are a source of limited export revenue and employment. Other important exports are mangoes and coffee. The Government relies heavily on international assistance.

The Government's human rights record was generally poor, and its overall effort to respect the human rights of its citizens was marred by serious abuses and shortcomings in oversight. The HNP's tendency to resort to excessive force resulted in a sharp increase in extrajudicial killings. Police were linked to several disappearances. Police continued to beat, at times torture, and otherwise mistreat detainees. While some HNP members were fired and some were incarcerated for human rights abuses, methodical investigations and prosecutions are rare, and impunity remains a problem. Poor prison conditions, arbitrary arrest and detention, and prolonged pretrial detention also remained problems. However, instances of brutality in prisons decreased during the year. The judiciary remained plagued by understaffing, inadequate resources, and corrupt and untrained judges. Judicial dockets remain clogged, and fair and expeditious trials are the exception rather than the rule. The judiciary is not independent in practice, and in at least 22 cases the executive branch detained persons in defiance of release orders issued by judges. Security forces carried out illegal warrantless searches. Most media practice some self-censorship; however, the press frequently is critical of the Government. Due to the nation's political crisis, citizens were unable to vote for representatives to Parliament. Violence against women, societal discrimination against women, and government neglect and abuse of children remain problems. The widespread practice of rural families sending young children to the larger cities to work as unpaid domestics (restaveks) also is still a problem. Child labor persists. Vigilante activity, including killings, remained a common alternative to formal judicial processes.

The Government's effort to redress the legacy of human rights abuse from the 1991-94 period was slightly more successful than in previous years. The 4-year investigation into the Raboteau massacre was completed in September, an indictment was issued, and by the end of the year, the case was moving towards trial. In July the Ministry of Justice disbursed about \$1,700 (27,000 gourdes) in reparation money to 914 victims of the 1993 Cite de Soleil fire, which reportedly was set by the paramilitary Front for the Advancement and Progress of Haiti (FRAPH). Otherwise, no significant progress was made in addressing other human rights violations or political killings dating from the Duvalier, de facto, or post-intervention periods.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

Members of the HNP committed extrajudicial killings. Most of the HNP killings were due to the use of excessive force, police confrontation with armed suspects, or armed confrontations involving off-duty officers. Credible reports of such killings by HNP members compiled by the UN/OAS International Civilian Mission in Haiti (MICIVIH) increased sharply in 1999. At year's end, 66 such reports had been received compared with 31 in 1998. MICIVIH also received credible reports that HNP officers participated with civilians in vigilante-style killings.

The most egregious single instance of extrajudicial killing was the summary execution by HNP officers in the presence of the Port-au-Prince police chief of 11 men on May 28 in the Port-au-Prince neighborhood of Carrefour-Feuilles. The killings occurred when residents called the police to respond to bandit activity. After the killings, the authorities arrested six police officers. Former Port-au-Prince police chief Coles Rameau fled to the Dominican Republic following the executions; however, he was apprehended at the Santo Domingo airport and returned to Port-au-Prince where he remained in custody at year's end. A special three-magistrate committee was formed to investigate the case; the investigation was still underway at year's end.

On January 8, an off-duty HNP member shot and killed a man following a traffic dispute in Cap Haitien. The officer was arrested but released by an examining magistrate on February 10 on the grounds that there were " many other considerations." On March 7, an off-duty policeman in Thomonde shot and killed a youth he suspected of taking his wallet. He was arrested but charged only with " theft of a weapon." In June a Port-de-Paix policeman crushed with a rock the head of a suspect he had just arrested. A prosecutor determined that the policeman acted in self-defense, despite independent inquiries that found that he had used excessive force. On April 19, HNP officers shot and killed Hypolite Elysee who was alleged to have been the leader of a gang that killed a CIMO agent and four other youths in the Fontamara area of Port-au-Prince 10 days earlier. HNP officials stated that Elysee opened fire first and that an HNP officer fired back, killing him; the authorities did not investigate this case. On April 20, two HNP officers killed Michelson Jean Philippe Guillaume in Port-au-Prince. Guillaume was a Fanmi Lavalas (former President Jean Bertrand Aristide's political party) coordinator, and his murder sparked a large pro-Lavalas demonstration and rumors that the killing was politically motivated. The HNP opened an investigation into the killing; however, the case remained unsolved at year's end. In June the authorities detained two Port-au-Prince police officers in connection with the fatal shooting of a man in Les Cayes on May 30. Also in May, police shot and killed a suspected gang member. During a June shootout between the HNP and an armed suspect in Ferrier, stray bullets killed a passer-by. Although the HNP concluded that the latter case was an accident, it paid for the victim's funeral expenses.

In early June, recent skeletal human remains were found at Titanyen (near Croix des Missions), an area that often had served as a dumping ground for bodies of victims of political killings during the Duvalier and military eras. The HNP's forensic unit removed the remains with the assistance of foreign experts. Preliminary findings link some of the remains with an April incident in which HNP officers allegedly arrested eight teenage associates of the gang leader, Hypolite Elysee, who HNP agents killed in April. Despite the efforts of their families to find them at police stations, prisons, and the morgue the youths were not located (see Section 1.b.). The HNP opened an investigation into the case in June; at year's end the investigation remained open.

At least one extrajudicial killing occurred when a suspect was in police custody. On April 13, HNP officials detained Felix Lamy in the Camp Perrin police station and severely beat him before transferring him to Les Cayes prison where he died. The authorities subsequently placed the HNP agent responsible for the beating in disciplinary custody.

The prison system experienced food shortages, and there were at least four deaths due to malnutrition (see Section 1.c.).

The 4-year investigation into the 1994 Raboteau massacre was completed in August, resulting in the dismissal of charges against 8 suspects and the indictment of 22 others, including former military leader Raul Cedras, who was indicted in absentia. Most of those indicted appealed; at year's end a ruling of the appeal was pending.

There were two killings that were widely regarded as politically motivated, although the HNP never solved them. On March 1, an unknown person shot OPL Senator Yvon Toussaint at close range. Toussaint's murder occurred at a high point of tension between the executive branch and members of the OPL over dissolution of the Parliament. Toussaint reportedly was followed and threatened in the days before the attack. Following the Toussaint killing, several other OPL parliamentarians were attacked and reported receiving death threats (see Section 1.c.). The HNP identified a suspect in the killing who was believed to have left the country. At year's end, the case remained unsolved.

The second killing occurred on the evening of October 8, when Jean Lamy, an advisor to the HNP and longtime political ally of former President Aristide, was shot and killed. This murder occurred the day after State Secretary for Public Security Robert Manuel resigned reportedly after a long campaign by groups associated with Fanmi Lavalas to secure his removal. Lamy's funeral was the venue for a demonstration by self-professed Aristide supporters. The killing remained unsolved at year's end.

Extrajudicial killings often take the form of vigilante actions. Most such incidents occurred without official complicity; however, MICIVIH reported credible evidence that certain so-called vigilance brigades were engaging in vigilante activities with the approval and even cooperation of the HNP and CASEC's. For example, vigilance brigades that consisted of police officers and civilians were responsible for 16 killings and 4 disappearances (see Section 1.b.) in May and June in the Bois

Neuf area of Cite Soleil. MICIVIH also received reports that the HNP condoned the activities of the " Brigade Fort St. Claire," one of Port-au-Prince's most infamous vigilante groups. On April 11, this group seized a man in the emergency waiting room of a Port-au-Prince hospital and lynched him.

Especially in rural areas where there is little or no police presence, the populace routinely resorts to lynching in the absence of reliable means of legal redress. Angry mobs often killed suspected thieves, bandits, murderers, rapists, and sorcerers, usually by assault with machetes, stoning, beating, or burning. MICIVIH recorded 76 fatalities in 48 separate lynchings during the year. However, the actual number of lynchings probably is far higher given the pervasiveness of the practice in remote rural areas. In several cases, HNP intervention prevented lynchings. In incidents in Mole St. Nicolas and Trou du Nord, HNP members attempted but failed to prevent lynchings. In one incident in Camp Coq, a mob seized an accused criminal during a hearing before the justice of the peace.

b. Disappearance

In April HNP officers allegedly arrested eight teenagers who disappeared following their arrests. The HNP's forensic unit linked some of the skeletal human remains found at Titanyen to the teenagers (see Section 1.a.).

MICIVIH reported that four persons from the Bois Neuf area of Cite Soleil disappeared on May 17. Several persons reported seeing members of a vigilante brigade chasing these individuals before their disappearance. Family members of the four attempted to find their bodies; however, they did not succeed in finding them by year's end.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution prohibits the use of unnecessary force or restraint, psychological pressure, or brutality by the security forces; however, members of the security forces continue to violate these provisions. Police officers used excessive--and sometimes deadly--force in making arrests or controlling demonstrations and rarely were punished for such acts. Police frequently beat suspects. There were sporadic instances of torture and other forms of abuse.

In interviews with prisoners, MICIVIH registered fewer allegations of police brutality in 1999 than in 1998. MICIVIH recorded 342 such allegations, compared with 423 in 1998. Nevertheless, police mistreatment of suspects, at both the time of arrest and during detention, occurs in all parts of the country. Beating with fists, sticks, and belts is by far the most common form of abuse. However, MICIVIH documented other forms of mistreatment, including burning with cigarettes, choking, hooding, and kalot marassa (severe boxing of the ears, which can result in eardrum damage). Those who reported such abuse often had visible injuries consistent with the alleged mistreatment. There also were isolated allegations of torture by electric shock, although MICIVIH was unable to verify these. Mistreatment also sometimes takes the form of withholding medical treatment from injured jail inmates. During the year, MICIVIH registered particular concern about police brutality in Cap Haitien, Petit-Goave, Petionville, Cite Soleil, and the Cafeteria precinct of Port-au-Prince. Police rarely are prosecuted for the abuse of detainees.

There were credible allegations of the use of excessive force on the part of the CIMO and UDMO crowd control forces. On February 2, CIMO members reportedly used excessive force in breaking up a demonstration of Cite Soleil residents at the National Palace. In May HNP officers were filmed beating four journalists who were covering a rally against crime and violence attended by several thousand persons (see Sections 2.a. and 2.b.). A CIMO agent reportedly assaulted a reporter and confiscated his camera during a June 24 disturbance at the " Lafamni Selavie" orphanage (see Section 2.a.). In Cap Haitien on February 8, UDMO personnel reportedly used excessive force in breaking up a student demonstration.

The Government's record of disciplining police officers implicated in these offenses is mixed. As of the end of September, at least 58 HNP officers were in prison on a variety of charges. The authorities charged 11 of these officers with human rights violations. However, more frequently the HNP simply discharged officers caught committing flagrant abuses. During the year, MICIVIH registered concern over several cases in which the authorities treated police officers accused of human rights violations with undue leniency. In Cape Haitien, the Ministry of Justice first ordered the transfer of an investigating magistrate

and then fired him, for attempting to bring a police officer to trial on apparently well-founded charges of assault. A government prosecutor found that the Port-de-Paix policeman who smashed a suspect's head with a rock (see Section 1.a.) acted in self-defense, despite the conclusion of MICIVIH and an internal police inquiry that it was obviously a case of excessive force. The policeman returned to active duty.

There continued to be sporadic instances of brutality on the part of local officials exercising unauthorized law enforcement functions. Especially in rural areas, MICIVIH has documented brutality by members and agents of local government councils, who tend to assume an illegal law enforcement role in the absence of a regular police presence. In the past, unofficial security forces controlled by mayors also committed human rights abuses; however, there were no reports that this occurred during the year.

In September four Haitians living in France filed lawsuits against former President Jean-Claude Duvalier, charging him with crimes against humanity while they were imprisoned and tortured during his 1976-86 rule.

Following the murder of OPL Senator Toussaint, several OPL senators and deputies were attacked and some reported receiving death threats. On March 15, OPL Senator Yrvelt Chery reported that shots were fired outside his gate. In April OPL deputy Vionette Wilner Raphael reported that his house was sprayed with bullets and that his official car was set on fire. Both Chery and Raphael alleged that they were targeted for being part of the opposition OPL. On April 22, three OPL parliamentarians, including Wilner, asked for and received temporary refuge at the Chilean Embassy claiming that their lives were in danger; they subsequently left the country. On September 5, unknown individuals fired at OPL spokesman Saveur Pierre-Etienne while he was driving towards Port-au-Prince (see Section 3).

On April 26, unidentified persons fired shots at or near the house of former OPL deputy Lorraine Casimir; she allegedly had been receiving telephone threats since before January 11. On May 5, unknown individuals vandalized Casimir's home. HNP officers reported that these attacks occurred because of a personal dispute; however, OPL leaders claimed that they were actually part of a systematic campaign to intimidate OPL parliamentarians.

On March 8, Pierre Esperance, Director of the National Coalition for Haitian Rights (NCHR) and treasurer of Platform of Haitian Human Rights Organizations (POHDH) was shot and wounded in Port-au-Prince. For weeks before this attack, both the NCHR and the POHDH received a number of threatening phone calls and leaflets, and the POHDH issued a press release on March 1 alleging that the threats were condoned officially. The HNP's investigation of this shooting remained unresolved at year's end (see Section 4).

On September 4, an explosive device detonated at the Chamber of Commerce and Industry. The blast did not injure anybody and only damaged the building slightly. Some members of the media characterized the bombing as part of an attempt to intimidate members of the private sector to stop rallying against lawlessness and poor governance. Members of the Chamber alleged that the attack was connected directly to pro-Lavalas threats against its president, Oliver Nadal.

Several sites related to the forthcoming elections were vandalized, and unidentified persons set fire to electoral offices in various locations. In the Grand'Anse, police failed to respond to acts of intimidation against election offices and against candidates from parties other than the locally-strong KOREGA party (see Section 3).

Prison conditions remained very poor. The new Penitentiary Administration Management (DAP), with the support of the International Committee of the Red Cross (ICRC), the UNDP, and MICIVIH, struggled to improve conditions in the country's prisons. Prisoners and detainees, held in overcrowded and inadequate facilities, continued to suffer from inadequate basic hygiene, poor quality health care, and 24-hour confinement to cells in some facilities. Several prisons experienced water shortages. At year's end, the country's 17 prisons held 3,797 prisoners, an increase of about 300 over 1998. In March the Government improved facilities at the main penitentiary in Port-au-Prince by adding space for an additional 600 inmates; however, overcrowding remained a problem.

The prison system experienced food shortages, and there were at least four deaths due to malnutrition. Many prisons were only able to supply one (as opposed to the required two) meals a day to inmates. Most severely affected were inmates whose diet was not supplemented by food brought by family members. A team of physicians who examined 217 inmates of Port-au-Prince's National Penitentiary found that 153 were suffering some degree of malnutrition and that 40 detainees were severely malnourished and not receiving proper medical care. The ICRC also found malnutrition in Gonaives prison, where there were three malnutrition-related deaths in early June. In Fort Liberte and Les Cayes, inmates organized demonstrations to protest the food shortage. The ICRC began a nutrition program in Gonaives, and a food center was set up at the National Penitentiary to address this problem. As an additional measure, DAP hired supervisors in four prisons with the sole responsibility of managing the food stocks. Despite these efforts, the ICRC found at year's end that 18 percent of inmates at the National Penitentiary suffered from malnutrition.

Fort National prison in Port-au-Prince is the only prison facility expressly for women and juveniles. In other prison facilities, women are housed in cells separate from the men. However, overcrowding often prevents strict separation of juveniles from adults, convicts from those in pretrial detention, or violent from nonviolent prisoners.

MICIVIH statistics indicated a decline in reports of mistreatment of inmates by DAP guards. However, abuse in the form of beating, slapping, and other degrading treatment continued. DAP took disciplinary action against a handful of guards implicated in these abuses. In January the director of the National Penitentiary, as a measure to prevent abuse, ordered that the guards no longer routinely be issued batons.

In June the Government approved regulations for acceptable prison conditions and disciplinary guidelines for inmates after a 2-year delay. Following government approval of these regulations, conditions improved slightly.

In the past, persons detained in politically sensitive cases often were kept in police station holding cells, rather than in regular prison facilities. These and other holding-cell detainees depended largely on their families for food and medicine. In some cases, police officers used their personal funds to buy food for such persons. There were no reports that this occurred during the year.

The authorities freely permitted the ICRC, the Haitian Red Cross, MICIVIH, and other human rights groups to enter prisons and police stations, monitor conditions, and assist prisoners with medical care, food, and legal aid. The Director General of the HNP and the State Secretary for Public Security cooperated with MICIVIH.

d. Arbitrary Arrest, Detention, or Exile

The HNP continued to use arbitrary arrest and detention. The Constitution stipulates that a person may be arrested only if apprehended during the commission of a crime, or if a judicial warrant has been issued. Judicial warrants cannot be executed between 6:00 p.m. and 6:00 a.m. The authorities must bring the detainee before a judge within 48 hours of arrest. In practice, the authorities frequently ignored these provisions. There were instances of arrests by security forces and local officials lacking the authority to do so. In particular, arrests by mayors and members of CASEC's occurred in underpoliced rural areas. Furthermore, MICIVIH has documented cases in which both children and adults have been imprisoned without a hearing simply because their parents requested this of a judge.

The requirement that a detainee be brought before a judge within 48 hours of his arrest was disregarded routinely in certain police jurisdictions, according to MICIVIH. Although the 48-hour rule is violated in all parts of the country, it is ignored most flagrantly in Jeremie, Cap Haitien, Petionville, and the Delmas commissariat of Port-au-Prince. In Petionville, MICIVIH documented 50 cases in the month of September alone in which this rule had been violated. Moreover, arrests sometimes are made on charges (for example, sorcery or debt) that have no basis in law. The authorities also detained some persons on unspecified charges or " pending investigation."

The authorities continued to detain persons in defiance of valid orders for their release issued by judges. MICIVIH expressed "extreme concern" at these cases and described the handling of them as "completely arbitrary and illegal." This practice disproportionately affected prisoners with histories of opposition to the Government or affiliation with the Duvalier or de facto regimes. However, suspected narcotics traffickers and other criminals also were included. At year's end, there were 22 prisoners held in defiance of valid release orders, including Thomas Asabath, Leoncefils Ceance, Steve Conserve, Bertrand Constant, Akis Deronette, Calero Bibas Fabien, Meradiou Faustin, Jean-Louis Henry, Robert LeCorps, Jean-Robert Lherisson, Rilande Louis, Leonard Lucas, Pierre Luckner, Georges Metayer, Alexandre Paul, Claude Raymond, Jean-Michel Richardson, and Jean Enel Samedi. During the months of October and November, 20 prisoners, including 2 who were being held in defiance of valid release orders, staged a hunger strike at the National Penitentiary to protest their plight. All of the strikers had been detained for at least 440 days and no trial date had been set in at least half of the cases. Minister of Justice Leblanc acknowledged that this practice was a problem and formed a commission to report to him on the matter. The commission does not have the authority to release the detainees; however, Minister Leblanc stated that he would abide by any recommendations to release them. The October reassignment of a state prosecutor who had acknowledged following political directives led to the release of some of the hunger strikers on humanitarian grounds.

As in previous years, the dysfunctional judicial system resulted in pervasive prolonged pretrial detention, with an estimated 80 percent of the country's prisoners awaiting trial. The problem is most extreme in Port-au-Prince. A February compilation of statistics on these cases by MICIVIH showed that of 3,090 prisoners, 1,172 have been held for more than 1 year. Of these, 775 had been held between 1 and 2 years, 287 had been held between 2 and 3 years, and 110 had been held for more than 3 years. Sometimes the charges in these lengthy detentions are minor. MICIVIH found one case in which a man had been imprisoned in the National Penitentiary since 1996 awaiting trial for theft of a portable tape recorder. Another inmate has been in prison since 1996 for suspected theft of a pair of pants.

Justice Minister Leblanc has announced that he accords resolution of the problem of pre-trial detentions high priority, has reorganized the Port-au-Prince prosecutor's office, and has attempted to implement a more rigorous schedule for hearings for correctional and criminal affairs. However, resolution of the problem awaits thorough judicial reform at all levels of the penal chain: Police, justices of the peace, prosecutors, investigating magistrates, trial judges, and prisons (see Section 1.e.).

Police in some instances attacked and detained journalists (see Sections 1.c. and 2.a.).

The Constitution prohibits involuntary exile of citizens, and there were no reports of its use.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary; however, it is not independent in practice. Years of rampant corruption and governmental neglect have left the judicial system poorly organized and nearly moribund. The Constitution sets varying periods of tenure for judges above the level of justice of the peace. However, in practice the Ministry of Justice exercises appointment and administrative oversight of the judiciary, prosecutors, and court staff. The Ministry of Justice can remove justices of the peace and occasionally dismisses judges above this level as well.

At the lowest level of the justice system, the justices of the peace issue warrants, mediate cases, adjudicate minor infractions, take depositions, and refer cases to prosecutors or higher judicial officials. Investigating magistrates and public prosecutors cooperate in the development of more serious cases, which are tried by the judges of the first-instance courts. Appeals court judges hear cases referred from the first-instance courts, and the Supreme Court deals with questions of procedure and constitutionality.

The judicial apparatus follows a civil law system based on the Napoleonic Code dating from 1832, with few subsequent amendments. The Constitution provides for the right to a fair public trial; however, this right was widely abridged in practice. The Constitution also expressly denies police and judicial authorities the right to interrogate persons charged with a crime unless the suspect has legal counsel or a representative of his or her choice present or waives this right. While trials are public, most accused persons cannot afford legal counsel for interrogation or trial, and the law does not require that the

Government provide legal representation. Despite the efforts of local human rights groups and the international community to provide legal aid, many interrogations without counsel occur. All defendants are entitled to representation by counsel during trials; however, in practice many defendants are unrepresented at trial. Defendants enjoy a presumption of innocence and the right to be present at trial, to confront witnesses against them, and to present witnesses and evidence on their own behalf, and the Government respects these rights in practice.

A shortage of adequately trained judges and prosecutors, among other systemic problems, created a huge backlog of criminal cases, with many detainees waiting months or even years in pretrial detention for a court date. The problem of case backlogs is related to the general shortage of qualified judges, prosecutors, and justices of the peace. Judges and other judicial officials lack the basic resources (such as office space, legal reference texts, and supplies) necessary to perform their duties. Professional competence sometimes is lacking as well; illiterate judges are not unheard of. If an accused person ultimately is tried and found innocent, there is no redress against the Government for time served in detention.

The Code of Criminal Procedure does not clearly assign responsibility to investigate crimes and divides the authority to pursue cases among police, justices of the peace, prosecutors, and investigative magistrates. Examining magistrates often receive dossiers that are empty or are missing police reports. Autopsies only rarely are conducted, and reports are even more rare. The code provides for two criminal court sessions (assizes) per year in each of the 15 first-instance jurisdictions, each session generally lasting 2 weeks, to try all major crimes requiring a jury trial. During the year, the Port-au-Prince jurisdiction--by far the largest in terms of caseload--failed to adhere to this stipulation due to difficulties in assembling a jury. The first criminal assizes since July 1998 occurred in Port-au-Prince in December.

The Prime Minister and Justice Minister have acknowledged openly the justice system's many failings and have developed a plan for judicial reform. Justice Minister Leblanc has demonstrated a relatively energetic and imaginative approach to his portfolio, although due to the vastness of the problems at hand and a lack of resources, the year was devoted largely to setting priorities and laying the groundwork for reform. Some of Leblanc's priorities included improving communication between the jurisdictions to the ministry, enforcing judicial decisions, and making justice more accessible by providing judges with cars to enable them to travel into their districts. Leblanc also created seven working groups to study a range of problems relating to the administration of justice. Their findings are to be used to develop implementing legislation for the judicial reform bill passed by Parliament in 1998.

In September the new Magistrates' School (whose first class graduated in 1998) held admission examinations for its next class. A total of 140 candidates took the examination, from which a class of 40 was selected; they started a 1-year training program in November. The Magistrates' School also held training seminars for 120 justices of the peace with the goal of improving their professional skills.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution prohibits interference with privacy, family, home, or correspondence; however, police and other security force elements conducted illegal warrantless searches. The police reportedly arrested family members of wanted persons when the suspects themselves could not be found.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press, and the Government generally respects these rights. Print and electronic media from opposite ends of the political spectrum often criticize the Government. However, most media practice a modest degree of self-censorship, wary of offending sponsors or the politically influential.

There are two daily French-language newspapers in the country, *Le Nouvelliste* and *Le Matin*, with a combined circulation of less than 15,000. Print media in Creole is limited due to regional variations and the lack of a consistent orthography; however, many newspapers include a page of news in Creole. Both daily newspapers frequently are critical of government policies.

With a literacy rate of only about 20 percent, broadcast media, especially Creole-language radio, have an unusual importance. Over 200 independent radio stations exist, including about 40 in the capital alone. Most stations carry a mix of music, news, and talk show programs, which many citizens regard as one of their only opportunities to speak out on a variety of political, social, and economic issues. Uncensored foreign satellite television is available; however, its impact is limited as most persons do not have access to television due to financial constraints. Broadcast media tend to criticize the Government less than the written press but freely express a wide range of political viewpoints.

On May 28, during a rally against crime and insecurity organized by the Chamber of Commerce, police and CIMO crowd control forces were filmed beating four journalists and seizing their cameras and film (see Sections 1.c. and 2.b.). In protest about 150 journalists demonstrated in front of the HNP commissariat on the Champs de Mars on June 7. The police authorities formally apologized; however, no charges were brought against them.

On June 24, a CIMO agent reportedly assaulted a journalist from the newspaper *Haiti en Marche* and confiscated his camera and press card (see Section 1.c.). The journalist was covering an incident in which 40 youths invaded their former Aristide Foundation-run orphanage; the youths threw stones at the orphanage management and police personnel claiming that they were promised jobs and places of residence that never materialized.

On April 27, the HNP arrested Leslie Fareau Bonny, director of Radio Timoun for possessing anti-HNP leaflets. HNP officials charged him with inciting to riot and defamation. On April 28, Bonny was released from prison.

Radio Vision 2000, which is known for its opposition to the Government, has engaged in a long-running dispute with Conatel, the Government's communications regulatory authority. In October unknown persons fired shots through the front windows of the station. One week later, the director of Conatel ordered Radio Vision 2000 to disconnect its satellite, which he declared illegal; however, station officials asserted that this was harassment by Conatel. The station was able to continue operations when a magistrate refused to approve the agency's actions.

Foreign journalists generally circulated without hindrance from the authorities.

The Government respects academic freedom. b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of assembly, and the authorities generally respect this right in practice. A variety of organizations were able to exercise this right without hindrance. Large and generally peaceful demonstrations occurred frequently throughout the year to protest the dissolution of Parliament, to decry increasing political violence, and to express dissatisfaction with a variety of economic issues.

At the May 28 rally organized by the Chamber of Commerce, HNP officers were filmed beating four journalists and confiscating their photography equipment (see Sections 1.c. and 2.a.). At the same demonstration, HNP officials failed to intervene as counterdemonstrators, many of who reportedly were linked to populist groups associated with the Fanmi Lavalas party, violently disrupted the event.

On October 24, demonstrators shouted pro-Aristide slogans and threw chairs and bottles of urine to disrupt a rally organized by the Provisional Electoral Council (CEP) to launch its preelection civic education campaign. The agitators succeeded in breaking up the rally. The HNP was not present at the event and, although a police station was nearby, they did not arrive to restore order after the violence began. The HNP subsequently asserted that the police leadership had not been given proper notice of the rally. President Preval, spokesmen of political parties, including Fanmi Lavalas, as well as MICIVIH, criticized the demonstrators' actions. Police handling of two subsequent rallies showed improvement.

In several cases, HNP officers used tear gas in order to control demonstrations. At a student demonstration in March, police officers used tear gas to disperse the crowd. In June protesters at the funeral of the 11 men executed by the HNP threw stones at HNP officers; police personnel shot into the air and used tear gas to quell the demonstration.

In February private security guards wounded several persons at a demonstration protesting recent cutbacks in electricity service.

The Constitution provides for freedom of association, and the Government generally respects this right in practice.

c. Freedom of Religion d.

The Constitution provides for the right to practice all religions and faiths, provided that practice does not disturb law and order, and the Government respects this right.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Government respects the right of freedom of movement within the country, to travel, to emigrate, and to return.

An unknown number of undocumented migrants put to sea seeking better economic opportunities in other countries. The Government operated, with international support, a national migration office to assist citizens involuntarily repatriated from other countries, notably the Dominican Republic and the Bahamas. In November mass repatriations of about 15,000 Haitian nationals by the Dominican Republic military created a crisis in Haitian-Dominican relations. About 25 percent of those repatriated returned to their hometowns, while the remainder either returned to the Dominican Republic or were waiting to do so at year's end. There were reliable reports of separation of families and mistreatment of Haitians by Dominican soldiers during this episode.

The Government has no policy regarding foreign nationals seeking refuge or asylum from third countries. The question of provision of first asylum did not arise. There were no reports of the forced return of persons to countries where they feared persecution.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides for regular elections for local and parliamentary offices and for the presidency, and President Rene Preval, who was elected in late 1995 in an election regarded by the international community as free and fair, continued in office. However, due to the nation's political crisis, citizens were unable to vote for representatives to Parliament.

Constitutional order has been eroded by the prolonged political crisis that was touched off by the flawed local and parliamentary elections of April 1997 and Prime Minister Rosny Smarth's subsequent resignation. A stalemate between the President and Parliament, which was dominated by members of the opposition OPL, over the approval of a successor continued through 1997 and most of 1998, preventing the organization of parliamentary and local elections due in November 1998. Preval's third nominee to the post of Prime Minister, Jacques Edouard Alexis, passed the first part of a two-stage ratification process in December 1998. Before he could complete the second part, which would have sought parliamentary approval of his Cabinet and plan of government, the terms of office of the entire 85-seat House of Deputies and all but 9 of the 27 members of the Senate expired on January 11.

All of the deputies in the last legislature were elected between June and December 1995. The mandates of nine senators who were elected in early 1991 expired in January 1997, and they should have been replaced in elections in 1996. However, those elections were delayed until April 1997, when only two senators received a clear majority and seven seats were supposed to be determined in a second round. The results of the 1997 elections were so widely contested that the second round was not held, and none of the nine senators took office. The other 18 senators were elected under the Electoral Law of 1995, in which a political deal was struck, determining that the terms of 9 senators would expire in January 1999 and 9 would expire in

January 2001. After January 11, the parliamentarians unilaterally voted to extend their mandates until new elections could be organized; however, President Preval announced publicly that he would not recognize this decision, which left the country without a functioning legislature. Members of Parliament requested that the Supreme Court hear their case for extending their terms of office; however, in February the Supreme Court ruled that it would not hear the dispute because it was not first considered by a lower court. Since January 11, President Preval and the remaining senators were the only serving government officials on the national level who were elected freely and held office in conformity with the provisions of the Constitution.

The mandates of the country's mayors also expired on January 11; however, President Preval decided to appoint all but two of them to continue serving until elections could be held. Opposition leaders and foreign observers criticized this decision, alleging that it placed the mayors in debt to President Preval, and effectively put the country's rural areas under his control. On January 22, about one-third of the mayors rejected Preval's offer to serve as presidential appointees, stating that their mandate should come from the electorate, and not the President.

Officials elected in 1997 as members of the territorial assemblies continued to serve following the disbanding of Parliament. Opposition leaders criticized the alleged preferential treatment given to those in territorial assemblies whose membership they claimed was largely allied with President Preval and Fanmi Lavalas.

In the weeks following the disbanding of Parliament, the political climate was increasingly tense. There were several occasionally violent strikes and demonstrations, and a series of reported threats and violent attacks against some opposition politicians. Authorities attributed at least some of the attacks to common crime unrelated to the political crisis. Members of opposition political parties--particularly the OPL--reported receiving telephoned threats, hearing shots fired outside their residences, suffering vandalism of their property and other acts of intimidation (see Section 1.c.). On March 1, OPL Senator Yvon Toussaint was killed (see Section 1.a.), and in April three OPL parliamentarians and members of their families took refuge in the Chilean Ambassador's residence, citing death threats. They subsequently left the country. In September unknown assailants shot at OPL spokesman Saveur Pierre-Etienne. Unknown assailants shot and wounded Marie-Claude Calvin, President Preval's sister, and others shot at Prime Minister Alexis's car; however, authorities reported that these incidents were not politically motivated (see Section 1.c.). Dissatisfaction by some groups with the CEP's electoral plans also led to violence; several sites related to the forthcoming elections were torched or vandalized in the southern department of Grand'Anse in December. Unidentified persons set fire to the house of the president of the Departmental Electoral Board in Jeremie, while others also set fire to the communal electoral offices (BEC's) in nearby towns of Anse-d'Hainault and Troubonbon and vandalized the BEC in Corail (see Section 3).

The leadership of the HNP also came under the pressure of threats and intimidation, raising concerns of a possible campaign to politicize the 4-year-old force at a time when police personnel were charged with ensuring a climate of security prior to elections. Populist groups reportedly associated with Fanmi Lavalas mounted a public campaign calling for the resignation of Robert Manuel as Secretary of State for Public Security. On October 7, Manuel resigned from his position. On October 8, unidentified assailants killed Jean Lamy, an advisor to the HNP (see Section 1.a.). One week later, unidentified assailants shot at the Director of the HNP's Judicial Police outside his home. On October 16, self-proclaimed supporters of former President Aristide disrupted Lamy's funeral service and forced the HNP's Director General, Pierre Denize to flee the building.

On March 6, President Preval negotiated an agreement with the Democratic Consultation Group, a coalition of five small opposition parties, aimed at ending the crisis by naming a Provisional Election Council to organize the overdue parliamentary and local elections. Members of the OPL, the country's largest opposition party, withdrew from the Democratic Consultation Group during negotiations with Preval, citing an unconstitutional cabinet and delays in the investigation of Senator Toussaint's murder. The OPL leaders also announced that they would not propose candidates for the CEP or for the new Government; however, they did not reject the possibility of participating in the forthcoming elections. The CEP consists of nine members chosen by President Preval on the basis of proposals made by the Democratic Consultation Group and members of civil society.

The CEP was charged with addressing the contested 1997 elections. In June CEP members declared publicly that the two controversial seats from the April 1997 elections would be on the ballot. In July the Lissade Commission report on the 1997 elections, which had never been released despite demands by opposition leaders, became public. The report listed numerous irregularities with the elections, including ballot box stuffing, falsification of affidavits, lack of affidavits, multiple voting by one party, use of false voter cards, voter and candidate intimidation, presence of armed persons at voting sites, moving polling sites, incomplete candidate lists, and impeding voter registration. The report also revealed that out of the 95 cases of documented transgressions the culprit was readily identifiable in 21 cases. Of these, Fanmi Lavalas was the culprit in 16 cases, OPL in 3, and Korega in 2. Following the release of this report, the CEP incorporated several provisions in the draft Electoral Law that were aimed at eliminating election fraud, such as distributing photo identification cards, adding poll watchers and providing them with better training, and instituting a policy of reporting results on election night.

President Preval implemented the new Electoral Law by decree in July, and the CEP began laying the groundwork for parliamentary and local elections. The elections initially were set for November; however, they were delayed several times. The first round of parliamentary and local elections was subsequently scheduled for March 19, 2000, with a runoff to be held in late April. At year's end, about 29,000 candidates from a range of political parties were registered as candidates in the local, regional, and national elections. Separate presidential elections were scheduled for December 2000.

In March President Preval also appointed a new Cabinet, in consultation with the Democratic Consultation Group. In the absence of a parliament, new ministers took office without being confirmed.

There are no legal impediments to women's participation in politics or government; however, they are underrepresented, and the low status of women limits their participation. The Election Law provides that the deposit required of female candidates for political office is half that required of male candidates, if a recognized party sponsors them. In the recent past, Haiti has had a female president, prime minister, foreign minister, and finance minister. Of the 80 sitting members of the Chamber of Deputies (3 seats were vacant) when it was disbanded, 3 were women. The Senate had no female members. At year's end, there were a total of 34 women registered for the Senate and Chamber of Deputies elections scheduled for 2000.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Domestic and international human rights groups generally operate without government restrictions; however, incidents of threats and intimidation from unknown sources increased during the year. Justice Minister Leblanc has sought dialog with some of these groups and solicited their recommendations on human rights issues such as restitution for victims of abuses committed under the 1991-94 de facto military regime. About a dozen groups monitor human rights abuses, with some working on civic education and legal aid as well.

On March 8, Pierre Esperance, country director of the National Coalition for Haitian Rights was shot and seriously wounded as he was driving his car near his Port-au-Prince office. The incident occurred after an escalation of telephone and verbal threats, and the appearance of threatening leaflets. The identities of the attackers or the motive for the shooting were not established. The HNP's investigation remained open but reportedly was inactive (see Section 1.c.).

The security climate worsened for several other domestic human rights groups including the Platform of Haitian Human Rights Organizations, the Karl Leveque Cultural Institute, Human Rights Fund II, and the National Coalition of Haitian Rights. These groups reported receiving repeated threats, most of them anonymous.

In May the Human Rights Fund II suspended a victims' assistance program after threats from members of the popular organization, Movement of the Victims of September 30 (MOVI-30).

In June the International Republican Institute (IRI) closed the offices of its democracy building program in Port-au-Prince. Since May 1998, the IRI had been the target of threats and violence, allegedly by self-professed supporters of former President Aristide. For example, two of the IRI's employees reportedly were threatened at gunpoint, its workshops were

destroyed, and associates of Fanmi Lavalas had called for the Institute's expulsion from the country.

The Office of the Protector of Citizens, an autonomous, ombudsman-like office provided for by the 1987 Constitution, made slow progress towards establishing itself as an effective entity. It remained constrained by budgetary and personnel deficiencies and reported difficulty in establishing cooperation with other ministries. In March in cooperation with the Human Rights Fund, it organized a seminar on police-community relations with the participation of HNP Director General Pierre Denize.

The lack of a functioning Parliament (see Section 3) had an impact on human rights monitoring, since parliamentary committees no longer investigated allegations of police abuses, as they had in 1998 during disturbances in Mirebelais and Milot.

The UN/OAS International Civilian Mission continued to play a vital and successful role in monitoring the human rights situation and in promoting adherence to human rights norms by the authorities. MICIVIH investigated all reports of human rights violations, issued periodic reports and press releases, conducted civic education, and trained local human rights groups. MICIVIH also worked with the Government to develop its institutional capacity to prevent and provide redress for human rights abuses. In June MICIVIH was forced to close five regional offices and dismiss half its monitors due to severe financial difficulties. The U.N. component of MICIVIH was scheduled to expire on December 31; however, it was extended until March 15, 2000. In November the U.N. General Assembly approved creation of a follow-on mission to MIPONUH and MICIVIH. The mandate of the new entity, the International Civilian Mission for Support in Haiti (MICAH), is to begin in March 2000 and continue to operate until February 6, 2001.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The 1987 Constitution does not specifically prohibit discrimination on the grounds of race, sex, religion, disability, language, or social status. It does provide for equal working conditions regardless of sex, beliefs, or marital status; however, there is no effective governmental mechanism to administer or enforce these provisions.

Women

According to women's rights groups, rape and other abuse of women is common, both within and outside marriage. A 1998 study by the Haitian Center for Research and Action for the Promotion of Women documented widespread rape and violence against women. The report also found that many women do not report these forms of abuse due to fear, shame, or lack of confidence in judicial remedies. A survey by the United Nations Children's Fund of violence against women found that 37 percent of women reported being victims of sexual violence or reported knowing a woman who had been; another 33 percent reported being victims of other types of physical abuse. The law provides penalties for these crimes; however, the authorities do not enforce these adequately. The law excuses a husband if he murders his wife or her lover upon catching them in the act of adultery in the home; however, a wife who kills her husband upon discovering him in the act of adultery is not excused. The National Commission of Truth and Justice, formed after the 1991-94 period of military rule, recommended several improvements to existing laws concerning rape and abuse of women; however, Parliament has not enacted any of these proposed changes. There are no government-sponsored programs for victims of violence.

In May 1998, 20 women's organizations met with parliamentarians and proposed changes to laws that they considered discriminatory. The changes proposed include the decriminalization of adultery, the classification of rape as a crime against the person rather than as a crime against honor, and the extension of the Labor Code to cover domestic work. They also proposed a law on violence against women and changes to the Family Code. None of the proposed changes were implemented by year's end. Sexual harassment of female workers in the assembly sector is a problem (see Section 6.b.).

The Ministry of Women's Affairs is charged with promoting and defending the rights of women and ensuring that they attain an equal status in society, but it has few resources at its disposal and was able to accomplish little in this regard.

The Constitution states that all citizens are equal before the law; however, women do not enjoy the same social and economic status as men. In some social strata, tradition limits women's roles. Peasant women, often the breadwinners for their families, remain largely in the traditional occupations of farming, marketing, and domestic labor. Very poor urban women, who head their families and provide their economic support, also often find their employment opportunities limited to traditional roles in domestic labor and marketing. Female employees in private industry or service jobs, including government jobs, seldom are promoted to supervisory positions. Laws governing child support recognize the widespread practice of multiple-father families but rarely are enforced. However, well-educated women have occupied prominent positions in both the private and public sector in recent years. Women's rights groups are small, localized, and receive little publicity.

Children

The Government's programs do not promote or defend children's rights. Government health care and education programs for children are inadequate or nonexistent. Primary education is supposed to be free and compulsory, but there are far too few public schools to accommodate the country's children, especially in rural areas. Public schools are not obligated to admit illegitimate children. According to a Ministry of Labor and Social Affairs spokesperson, schools' refusals to admit illegitimate children currently is less of a problem than it was in the past. Poorer families sometimes ration education money to pay school fees for male children only.

Rural families continued to send young children to more affluent city dwellers to serve as unpaid domestic labor; families of these children frequently received financial compensation (see Section 6.f.). A 1991 U.N. study cited this practice as an example of slavery in the 20th century. One international organization estimated that 250,000 to 300,000 children, 85 percent of them girls, may be victims of this practice, called "restavek" (which means "lives with" in Creole). The Ministry of Social Affairs believes that many employers compel the children to work long hours, provide them with little nourishment, and frequently beat and abuse them. The law requires that restaveks 15 years of age and older be paid "not less than one half the amount payable to a hired servant" to perform similar work, in addition to room and board. To avoid this obligation, employers send many if not most restaveks away from the home before the children reach the age of 15. Most local human rights groups do not report on the plight of restavek children as an abuse or seek to improve their situation. The Ministry of Social Affairs believes that it can do little to stop this practice, regarding it as economically motivated; the Ministry assigned five monitors to oversee the welfare of restavek children. Society holds such children in little regard, and the poor state of the economy worsened their situation. Port-au-Prince's large population of street children includes many restaveks who have been sent out of employers' homes or are runaways.

People with Disabilities

The Constitution provides that disabled persons shall have the means to ensure their autonomy, education, and independence. However, there is no legislation to implement these constitutional provisions or to mandate provision of access to buildings for the disabled. Although they do not face overt mistreatment, given the severe poverty in which most Haitians live, those with disabilities face a particularly harsh existence. Disabled beggars are commonly seen on the streets of Port-au-Prince and other towns.

National/Racial/Ethnic Minorities

Some 99 percent of Haitians are descendants, in whole or in part, of African slaves who won their war of independence from France in 1804. The remaining population is of European, Middle Eastern, North American, or Latin American origin. The law makes no distinction based on race. Longstanding social and political animosities often are tied to cultural identification, skin color, and overlapping issues of class in this starkly inegalitarian society. Some of these animosities date back to before Haiti's revolutionary period.

The Government recognizes two official languages: Creole, which is spoken by virtually all Haitians; and French, which is spoken by about 20 percent of the population, including the economic elite. The inability to communicate in French has long limited the political and economic opportunities available to the majority of the population. The Government prepares most

documents only in French, and most judges conduct most legal proceedings exclusively in French. Complicating this is the lack of an agreed-upon standard for written Creole. However, in 1995 the lower house of Parliament designated Creole as the language for parliamentary debate.

Section 6 Worker Rights

a. The Right of Association

The Constitution and the Labor Code provide for the right of association and provide workers, including those in the public sector, with the right to form and join unions without prior government authorization. The law protects union activities and prohibits a closed shop. The law also requires a union, which must have a minimum of 10 members, to register with the Social Affairs Ministry within 60 days of its formation.

Unions are independent of the Government and political parties. Six principal labor federations represent about 5 percent of the total labor force, including about 2 to 3 percent of labor in the industrial sector.

Teachers went on strike for several months early in the year because they had been promised a 32 percent pay increase that never materialized. This strike led public high school students to throw rocks at private schools, demanding that they close in solidarity. Students also clashed with HNP officers during demonstrations (see Section 2.b.). The public school teachers eventually returned to work; however, they called a 3-day strike in June to protest the Government's continuing failure to increase salaries and disburse back pay. The teachers struck again from September to November. They eventually filed suit against the Government due to the fact that they had not received back pay or the promised salary increase by year's end.

On January 22, the OPL, allied political parties, civil society groups, and some labor unions held a nationwide general strike to protest the dissolution of Parliament.

In August workers forced the closure of the port in Gonaives for over 2 weeks by striking over a new method of tax collection.

Each of the principal labor federations maintained some fraternal relations with various international labor organizations.

b. The Right to Organize and Bargain Collectively

The Labor Code protects trade union organizing activities and stipulates fines for those who interfere with this right. Unions generally were free to pursue their goals, although the Government made little effort to enforce the law. Union leaders assert that some employers in the private industrial sector dismiss individuals who participate in union organizing activities. Organized labor activity was concentrated in the Port-au-Prince area, in state enterprises, the civil service, and the assembly sector. The high unemployment rate and antiunion sentiment among some factory workers limited the success of union organizing efforts.

Collective bargaining continued to be nonexistent, and employers set wages unilaterally. The Labor Code does not distinguish between industries producing for the local market and those producing for export. Employees in the export-oriented assembly sector enjoyed better-than-average wages and benefits. Female workers in the assembly sector report that some employers sexually harass female workers with impunity. Women also assert that, while the vast majority of assembly sector workers are female, virtually all the supervisors are men.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The Labor Code prohibits forced or compulsory labor and applies equally to minors; however, while such labor is not known to occur among adults, the Government failed to enforce this law for children, who continued to be subjected to forced domestic labor as *restaveks* in urban households under conditions that amount to slavery (see Sections 5 and 6.f.).

d. Status of Child Labor Practices and Minimum Age of Employment

The minimum employment age in all sectors is 15 years, with the exception of domestic service, where the minimum age is 12. The Labor Code prohibits minors from working under dangerous conditions, and it prohibits minors under the age of 18 from working at night in industrial enterprises. There is also legal provision for employment of children between the ages of 12 and 16 as "apprentices." Fierce adult competition for jobs ensures that child labor is not a factor in the industrial sector. Children under the age of 15 commonly worked at informal sector jobs to supplement family income, despite the legal prohibition and the fact that primary education is supposed to be free and compulsory (see Section 5). Children also commonly work on small family farms alongside their parents, even though the high unemployment rate among adults keeps children from being employed on commercial farms in significant numbers. The Labor Code prohibits forced or compulsory labor, which applies equally to minors; however, some children are forced to work as domestic servants (see Sections 5 and 6.c.) In these as in many other areas, government agencies lack the resources to enforce the relevant laws and regulations effectively.

e. Acceptable Conditions of Work

The legal minimum daily wage, established in June 1995, is about \$2.18 (36 gourdes). Annually, a minimum wage worker would earn about \$680, an income considerably above the national average but not sufficient to provide a decent standard of living for a worker and family. The majority of citizens work in subsistence agriculture, a sector where minimum wage legislation does not apply.

The Labor Code governs individual employment contracts. It sets the standard workday at 8 hours, and the workweek at 48 hours, with 24 hours of rest on Sunday. However, the officers of the HNP work 12-hour shifts 6 days per week, in apparent violation of the Labor Code. The code also establishes minimum health and safety regulations. The industrial and assembly sectors largely observed these guidelines. The assembly sector published a voluntary code of conduct in April, committing signatories to a number of measures designed to raise industry standards, including payment of the minimum wage and the prohibition of child labor. However, the Ministry of Social Affairs did not enforce work hours or health and safety regulations. With more than 50 percent of the population unemployed, workers were not able to exercise the right to remove themselves from dangerous work situations without jeopardy to continued employment.

f. Trafficking in Persons g.

The law does not prohibit trafficking in persons, and internal trafficking of children is a problem. Rural families send young children to affluent city dwellers to serve as unpaid domestic labor; the families of such "restaveks" frequently receive monetary compensation (see Section 5). An estimated 250,000 to 300,000 children, 85 percent of them girls, may be victims of this practice.

There were no other reports of trafficking in, to, or from the country.

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